

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
DAVONTE DOLLARD,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. NESTOR
AMARANTEPOLANCO, P.O. NICHOLAS RIOS and
POLICE OFFICERS JOHN AND JAMES DOE, meant to
designate additional offending officers presently
unknowable by Plaintiff, all Individually and in their
official capacities,

The basis of venue is:
CPLR 504 (3)

Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
August 17, 2021



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To: CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, Law Dept. , New York, New York 10007

P.O. NESTOR AMARANTEPOLANCO, Shield 16064 and P.O. NICHOLAS RIOS Shield 6583
PSA 7, 737 Melrose Avenue, Bronx NY 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DAVONTE DOLLARD,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. NESTOR
AMARANTEPOLANCO, P.O. NICHOLAS RIOS and
POLICE OFFICERS JOHN AND JAMES DOE, meant to
designate additional offending officers presently
unknowable by Plaintiff, all Individually and in their
official capacities,

Defendants.
-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF DAVONTE DOLLARD

1. At the time of the commencement of this action, plaintiff DAVONTE DOLLARD
was and still is a resident of the County of Bronx, State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about May 20, 2020, P.O. NESTOR AMARANTEPOLANCO was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

6. That on and about May 20, 2020, at approximately 9:25 P.M., P.O. NESTOR AMARANTEPOLANCO was working and acting within the scope of his employment as a Police Officers, and under the color of law.

7. That on and about May 20, 2020, P.O. NICHOLAS RIOS was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

8. That on and about May 20, 2020, at approximately 9:25 P.M., P.O. NICHOLAS RIOS was working and acting within the scope of his employment as a Police Officers, and under the color of law.

9. That on and about May 20, 2020, POLICE OFFICERS JOHN AND JAMES DOE, whose identities are presently unknowable to Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about May 20, 2020, at approximately 9:25 P.M., said POLICE OFFICERS JOHN AND JAMES DOE were working and acting within the scope of their employment as a Police Officers, and under the color of law.
11. That on or about May 20, 2020 at approximately approximately 9:25 P.M., at or near the front of 285 East 156th Street, Bronx, New York plaintiff was lawfully present on the sidewalk.
12. That at the above time and approximate place plaintiff observed Police Officers aggressively questioning a group of young individuals.
13. That the approach of these Police Officers and the aggressive questioning of groups of youths was a common form of police harassment in this neighborhood and Plaintiff commenced videoing the interaction.
14. That Plaintiff's videoing at no time interfered with any legal conduct, nor was any way unlawful.
15. That a defendant aggressively grabbed Plaintiff's arm and subsequently told Plaintiff to leave which Plaintiff complied with.
16. That as Plaintiff walked away, defendant P.O. NICHOLAS RIOS then quickly approached Plaintiff from behind, pushed, grabbed, and commenced an ongoing assault upon Plaintiff, including punching, choking and pepper spraying Plaintiff.

17. Defendant P.O. NICHOLAS RIOS then arrested Plaintiff DAVONTE DOLLARD.
18. Defendant P.O. NICHOLAS RIOS' aforementioned arrest of Plaintiff was without probable or reasonable cause.
19. That the defendant P.O. NICHOLAS RIOS arrested Plaintiff in substantial part, because Plaintiff was recording and monitoring defendant officer's conduct.
20. As such, Plaintiff asserts a private right of action pursuant to Civil Rights Law §79-p, a statute placed into law specifically because it was the practice of officers of the New York City Police Department to interfere with the lawful monitoring of police conduct.
21. That the offending police officers approached plaintiff without cause and under false pretense, stopped, assaulted and detained plaintiff and thereafter falsely alleged that Plaintiff Resisted Arrest and engaged in Disorderly Conduct.
22. While Plaintiff reactively attempted to lessen and shield himself from the violent insults of Defendants assaults in an attempt to safeguard his wellbeing, plaintiff did not a Resist a lawful Arrest, nor engage in Disorderly Conduct.
23. That on or about May 20, 2020 at approximately approximately 9:25 P.M., at or near the front of 285 East 156th Street, Bronx, New York, the plaintiff DAVONTE DOLLARD was improperly arrested and confined without privilege, knowledge of

warrant, proper authority nor justification, having no reason in law or in fact to arrest or confine DAVONTE DOLLARD.

24. That the defendants, their agents, servants and/or employees arrested the plaintiff DAVONTE DOLLARD without any basis in law or fact and without reasonable, probable or just cause or justification.

25. That the defendants, their agents, servants and/or employees arrested the plaintiff DAVONTE DOLLARD without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

26. That the defendants, their agents, servants and/or employees unlawfully arrested, searched and detained the plaintiff DAVONTE DOLLARD, who was aware of his unlawful detention and confinement, and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

27. That the defendants utilized unreasonable unnecessary excessive force.

28. That plaintiff was thereafter forcibly detained, including being restrained by hand cuffs, which necessarily constituted an unwanted touching, thereby further assaulting and battering plaintiff.

29. Thereafter, Plaintiff was transported to a hospital, in shackles, and was forced to remain in restrained until after his return to the PSA 7 Police Precinct.

30. Thereafter Plaintiff was arraigned before a Judge of the Bronx Criminal Court, and was Granted an Adjournment in Contemplation of Dismissal which was then and there, immediately Dismissed.

31. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest plaintiff without probable or reasonable cause nor knowledge of warrant, intended to and did confine plaintiff without his consent, which non-privileged confinement plaintiff was consciously aware of and did initiate a criminal proceeding without probable cause maliciously.

32. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, and engaging in a policy and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, and/or to attempt to justify their own wrongful conduct, and without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

33. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and conducting searches in public and while in custody when there is no reasonable basis to conduct a search and without individualized reasonable suspicion of the secreting of evidence, are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

34. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

35. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department, in addition to

multiple other officers who have alleged, in court and in public, that such a practice exists to the detriment of the police department and public.

36. Furthermore the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent persons for such charges as resisting arrest and disorderly conduct in ill-fated attempts at justifying their own misconduct, or in retaliation for legal behaviors not to the arresting officers liking, and in an effort to subjugate certain minority male populations as an excuse for selectively enforcing supposed 'quality of life' violations.

37. Said policy and practice of enforcing 'quality of life' is racially biased and focuses almost exclusively of black and brown young men, and selectively targets said individuals, and often results in fabricated charges such as possession of marijuana and disorderly conduct in retaliation for lawful behaviors interpreted as disrespect by police officers seeking to subjugate those individuals and administer repressive control over communities of color and administer extrajudicial punishments of unlawful precinct detentions, knowing said summons will be ultimately nullified by the courts.

38. Said practice and procedure of falsely arresting innocent persons on such charges as resisting arrest and disorderly conduct is well evidence by defendants' own compstat and other statistical tabulations, as well as those of the district attorney, the civilian

complaint review board and the bureau of internal affairs in retaliation and in ill-fated attempts at justifying their own wrongful conduct.

39. For instance, statistical analysis of the 51,503 criminal cases in New York City from 2009 through 2014 charging resisting arrest show that 5% of officers account for 40% of resisting arrest charges and 15% of officers account for nearly 75% of such cases and 60% of officers made arrests while never charging resisting arrest, evincing, among other things, the violent nature of only certain officers, including the named offers herein.

40. Moreover, the New York City Bar published an exhaustive study which demonstrated the unconstitutional policy instituted by the the Defendants, which continued unabated despite protestations of the amelioration of said policy, which is found at <https://www2.nycbar.org/pdf/report/uploads/20072495-StopFriskReport.pdf> . Said policy resulted in Court Stipulated Supervision which has not been successful and resulted in an evasion of documentation and generation of reports created by offending officers, thereby surreptitiously continuing the unlawful policy.

41. On October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can

be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf. That report determined that the New York City Police Department routinely fails to discipline officers who have been proven have engaged in abuses of power, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remedying those practices, the practices continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein as well.

42. That no negligence or actions on the part of the plaintiff DAVONTE DOLLARD contributed to the occurrences alleged herein in any manner whatsoever.

43. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., and the named defendants' supervisors, including policy makers, by policy, institutionalized procedure and act, deprived the plaintiff DAVONTE DOLLARD of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment

right to be free from unlawful seizures of his person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

44. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

45. That as a result of the foregoing, the plaintiff DAVONTE DOLLARD was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF DAVONTE DOLLARD

46. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 45 as though more fully set forth herein.

47. That on September 14, 2020 plaintiff caused a Notice of Claim to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

48. At least thirty (30) days have elapse prior to the commencement of this action and adjustment of payment thereof be neglected or refused by the defendant.

49. Defendant did notice and demand a General Municipal Law §50-h hearing and plaintiff did appear and testify at said hearing on June 16, 2021.

50. This action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based or within the time allowed by law, and not limited to Executive Order 202.8 and those Executive Orders thereafter continuing the tolling of applicable Statutes of Limitations.

51. That on or about May 20, 2020 at approximately 9:25 P.M., at or near the front of 285 East 156th Street, Bronx, New York, the plaintiff DAVONTE DOLLARD was improperly arrested and confined without privilege, knowledge of warrant, proper authority, justification nor reasonable or probable cause, having no reason in law or in fact to arrest DAVONTE DOLLARD.

52. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff DAVONTE DOLLARD of Due Process under Law.

53. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants

and / or employees, POLICE POLICE OFFICERS JOHN AND JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

54. That the plaintiff DAVONTE DOLLARD, being aware of his unjust confinement, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK and it POLICE POLICE OFFICERS JOHN AND JAMES DOE.

55. That no negligence or actions on the part of the plaintiff DAVONTE DOLLARD contributed to the occurrences alleged herein in any manner whatsoever.

56. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

57. That as a result of the foregoing, the plaintiff DAVONTE DOLLARD was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF DAVONTE DOLLARD

58. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 57 as though more fully set forth herein.

59. The defendants did assault and batter and thereafter physically restrain the plaintiff with handcuffs and shackles, causing pain and distress, and constituted a further unwanted touching and assault and battery upon the plaintiff.

60. That the actions herein described herein constituted unreasonable unnecessary excessive force and assault and batter upon plaintiff.

61. As a result of the aforesaid assaults, plaintiff received injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

62. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

63. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

64. That as a result of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF DAVONTE DOLLARD

65. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 64 as though more fully set forth herein.

66. That when Plaintiff commenced recording the aforementioned police conduct, Plaintiff was not under arrest or in custody.

67. That when Plaintiff commenced recording he did not engage in any activities that physically interfered with law enforcement activity or otherwise constituted any crime.

68. Plaintiff's right to be free of unlawful interference with recording a law enforcement activity was violated when, after exercising that right, and defendant P.O. NICHOLAS RIOS interfered with his recording of law enforcement activity by intentionally preventing or attempting to prevent his continued recording, and in fact stopped, seized, assaulted, searched and arrested Plaintiff, thereby retaliating against him for exercising his right to record such activity.

69. As such Plaintiff asserts his right to this cause of action under Civil Rights Law § 79-p.

70. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

71. That as a result of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF DAVONTE DOLLARD

72. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 71 as though more fully set forth herein.

73. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

74. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and in the proper use of force.

75. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff DAVONTE DOLLARD was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

76. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third, Fourth and Fifth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated:Bronx, N.Y.
August 17, 2021



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

DAVONTE DOLLARD

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To: CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, Law Dept. , New York, New York 10007

P.O. NESTOR AMARANTEPOLANCO, Shield 16064 and P.O. NICHOLAS RIOS Shield
6583, PSA 7, 737 Melrose Avenue, Bronx NY 10455

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

DAVONTE DOLLARD

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that affirmant is presently maintaining his office outside of the county wherein plaintiff resides due to the ongoing COVID-19 Crisis and Emergency.

DATED: Westchester, N.Y.

August 17, 2021



JONATHAN L. GLEIT, ESQ.